



File No: EXP202409491

RESOLUTION OF TERMINATION OF THE PROCEDURE DUE TO VOLUNTARY PAYMENT

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: On November 14, 2024, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against BREOGAN AUTOLUX, S.L. (hereinafter, the claimed party), through the Agreement that is transcribed:

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Procedure No: EXP202409491 (PS/00455/2024)

AGREEMENT TO INITIATE SANCTIONING PROCEDURE

From the actions taken by the Spanish Agency for Data Protection and based on the following,

FACTS

FIRST: On April 29, 2024, A.A.A. (hereinafter, the claiming party) submitted a complaint to the Spanish Agency for Data Protection (AEPD).

The complaint is directed against the entity BREOGAN AUTOLUX, S.L., with NIF: B15755853 (the claimed party), for the alleged violation of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (LSSI).

In the complaint, the claimant states that they receive advertising via SMS without having previously accepted it, and there is no option in the SMS itself to stop receiving such advertising. Along with the complaint, the following documentation is attached:

- Screenshot of the SMS message received on the phone number ***PHONE.1, originating from "BREOGAN":

- o "We invite you to the 2024 OUTLET of TOYOTA and LEXUS in the BREOGAN group. Up to €9,870 discount. And get an extra €500 SAVINGS at www.edz.es/2102315294."

- Copy of the "PRIVACY POLICY" of the document indicating that it is the website of "Special Days of Breogán," where it can be read, among other issues, the following:

- o The company BREOGÁN AUTOLUX, S.L., hereinafter referred to as "DATA CONTROLLER" with address at AVDA. DAS MARIÑAS 288, with C.I.F. B15755853. That the DATA CONTROLLER has entrusted the processing of the data of this WEBSITE to the company OPTIMA MARKETING SYSTEMS SL...

SECOND: On June 28, 2024, in accordance with the provisions of Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD), this Agency forwarded the complaint to the company OPTIMA MARKETING SYSTEMS SL., responsible for processing the data of the website, for them to analyze it and report back within one month on what was stated in the complaint.

THIRD: On July 15, 2024, a response was received at this Agency from the claimed entity stating the following:

"FIRST.- The decision made regarding this complaint.

In order to clarify the facts, we find it necessary to establish that at OPTIMA MARKETING SYSTEMS we are an organization dedicated to organizing events for the sale of automobiles. Among our clients is GRUPO BREOGAN (hereinafter, "GRUPO BREOGAN") with whom we have signed a service provision contract, as well as a contract as data processor, under Article 28 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data (hereinafter, "GDPR") as well as Article 28 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (LOPDGDD). A contract as data processor with GRUPO BREOGAN is attached.

Therefore, under this data processor contract, our organization processes personal data under the responsibility of GRUPO BREOGAN as the data controller. Thus, compliance with the principle of

transparency (duty to inform) as well as the analysis of the legal basis for receiving electronic communications (Article 6 of the GDPR and Article 21 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce) corresponds to GRUPO BREOGAN as the data controller.

Additionally, at OPTIMA MARKETING SYSTEMS, we want to achieve the highest level of compliance with data protection regulations. Therefore, we would like to indicate that we have a Data Protection Management System (hereinafter, "SGPD"), which includes, among other documents, protocols and procedures, as well as the Record of Processing Activities and risk analysis.

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By virtue of all the above, a review of the current system for sending electronic communications has been carried out to prevent similar situations from occurring in the future (see point three of this document).

As previously indicated, the claimant has received a commercial communication from OPTIMA MARKETING SYSTEMS with promotions from GRUPO BREOGAN. We would like to emphasize once again the formalization of the Data Processing Agreement between GRUPO BREOGAN and OPTIMA MARKETING SYSTEMS, in which our organization acts as the Data Processor. Therefore, from OPTIMA MARKETING SYSTEMS, we understand that all data provided by GRUPO BREOGAN is processed lawfully and transparently. (...)

Along with the response document, the following documentation is attached:

Copy of the "Data Processing Agreement with GRUPO BREOGAN," signed on 15/05/24 between the entities OPTIMA MARKETING SYSTEMS and BREOGAN AUTOLUX SL., where the following can be read, among other matters:

"On one side, B.B.B., DNI ***NIF.1 acting as the legal representative of OPTIMA MARKETING SYSTEMS, SL. with address at ***DIRECCION.1 and NIF ***NIF.2 hereinafter referred to as the DATA PROCESSOR.

On the other side, C.C.C., DNI ***NIF.3, acting as the legal representative of BREOGÁN AUTOLUX, SL., with address at AVDA. DAS MARINAS, 288, CP: 15173 OLEIROS, A CORUÑA and NIF 815755853, hereinafter referred to as the DATA CONTROLLER.

Both parties, following a verbal commitment for the provision of said campaign, freely and spontaneously agree to regulate the processing of personal data of the DATA CONTROLLER, according to the following clauses, all in accordance with compliance with European data protection regulations [REGULATION (EU) 2016/679] and national regulations Organic Law 3/2018, of December 5, on Personal Data Protection and guarantee of digital rights.

On one side, the DATA CONTROLLER, represented by Mr. C.C.C. in his capacity as legal representative with sufficient powers for the execution of this Agreement. And on the other side, the DATA PROCESSOR, represented by B.B.B., in his capacity as legal representative with sufficient powers for the execution of this Agreement.

Through these clauses, the DATA PROCESSOR, an entity dedicated to digital marketing and CRM, is authorized on behalf of the DATA CONTROLLER, an entity dedicated to the marketing and repair of motor vehicles, to process the necessary personal data for the purpose of evaluating the provision of services for the execution of the Special Days project, and its corresponding budget.

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Once the feasibility of the services to be provided has been studied, the service provision contract to be executed will be attached to this data processing agreement, signed between the DATA

CONTROLLER, as the creator of its own databases, and the DATA PROCESSOR.

The DATA CONTROLLER makes available to the DATA PROCESSOR all the information from its DM5 and sales CRM and any other databases that the DATA CONTROLLER deems necessary for the Special Days. The DATA CONTROLLER, as the holder of the sui generis right over them, authorizes the DATA PROCESSOR to carry out the processing consisting of the collection, structuring, consultation, matching, conservation, integration, communication, and deletion which are necessary for the execution of the Special Days project. The purpose of the processing and its objectives are reflected in Annex I of this contract..."

FOURTH: On 29/08/24, in accordance with Article 65 of the LOPDGDD, the complaint submitted was admitted for processing.

FIFTH: According to the report obtained from the AXESOR tool, the entity BREGAN AUTOLUX, S.L., with NIF: B15755853 had a business volume of 19,958,000 euros in the year 2022.

LEGAL GROUNDS

I.

Competence.

In accordance with the provisions of Article 43.1 of the LSSI and the provisions of Articles 47, 48.1, 64.2, and 68.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection will be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued in its development, and, as long as they do not contradict them, subsidiarily by the general rules on administrative procedures."

The fourth additional provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions in Title VIII and its development regulations will apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II.

Summary of the facts regarding the commercial communications received:

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In the present case, the claimant states that they have received advertising communications via SMS without their consent, also indicating that there is no option in these SMS to deactivate the receipt of such messages.

In the response to the transfer that the AEPD makes of the complaint to the entity OPTIMA MARKETING SYSTEMS SL (OPTIMA), holder of the website mentioned in the SMS, it states that it acts as the "Data Processor" of the data of BREGÁN AUTOLUX, an entity that appears as the "Data Controller."

It clarifies that it has a service provision contract and an agreement as a data processor with BREGÁN AUTOLUX, in accordance with the General Data Protection Regulation (GDPR) and Organic Law 3/2018 on the Protection of Personal Data and Guarantee of Digital Rights (LOPDGDD) and attaches the signed contract with BREGÁN AUTOLUX, in which both parties establish the conditions for data processing in the execution of commercial campaigns, such as the "Special Days" event (the event referred to in the SMS received by the claimant and which is provided along with their complaint).

The contract authorizes OPTIMA to carry out certain data processing necessary for the campaign, under the guidelines and responsibility of BREGÁN AUTOLUX, which provides the databases and holds the right of control over these data.

III.

Qualification of the possible infringement committed by sending commercial communications without legitimacy.

The facts enumerated above, regarding the sending of commercial communications via SMS without having requested or expressly authorized them, may constitute a violation of what is established in Article 21.1 of the LSSI, by the entity being complained about, as it establishes the following:

“1. The sending of advertising or promotional communications by email or other equivalent electronic communication means that have not previously been requested or expressly authorized by the recipients of these is prohibited...”

IV.

Proposal and Graduation of the sanction

The aforementioned infringement of Article 21.1 of the LSSI is classified as minor in Article 38.4.d) of said regulation, which qualifies as such, “The sending of commercial communications by email or other equivalent electronic communication means when the requirements established in Article 21 are not met and does not constitute a serious infringement.”

According to what is established in Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

For its part, Article 40 of the LSSI establishes the criteria for the graduation of the amount of the sanctions: “The amount of the fines imposed will be graduated according to the following criteria: a)

The existence of intent. b) The period of

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time during which the infringement has been committed. c) Recidivism for committing infringements of the same nature, when declared by a firm resolution. d) The nature and extent of the damages caused. e) The benefits obtained from the infringement. f) Volume of billing affected by the committed infringement. g) Adherence to a code of conduct or an applicable advertising self-regulation system regarding the committed infringement, which complies with the provisions of Article 18 or in the eighth final provision and has been favorably reported by the competent body or bodies.

Based on the evidence obtained and without prejudice to what results from the instruction, it is considered appropriate to adjust the sanction to be imposed according to the aggravating factor of intentionality (section a), for sending commercial communications to the complainant without them having requested or expressly authorized them.

According to these criteria, it is deemed appropriate to impose an initial sanction of 5,000 euros (five thousand euros) for the infringement of Article 21.1 of the LSSI, without prejudice to what results from the instruction of the procedure.

V.

Summary of the events regarding the absence of a mechanism that allows deactivating the option to receive new commercial communications.

In addition to the complaint made regarding the commercial communications received via SMS without their consent, the complainant states that there is no option in these SMS to deactivate the receipt of this type of messages, and to corroborate this, they present a copy of the received SMS with the following message: “We invite you to the OUTLET 2024 of TOYOTA and LEXUS in the BREGAN group. Up to €9,870 discount. And get an EXTRA SAVINGS of €500 at www.edz.es/2102315294.”

VI.

Classification of the possible infringement committed due to the absence of a mechanism that allows opposition to receiving commercial communications.

The aforementioned facts, regarding the absence of a mechanism that allows the user to oppose receiving commercial communications, may constitute a violation of what is established in Article 21.2 of the LSSI, by the entity being complained against, as it establishes the following:

“2. The provisions of the previous section shall not apply when there is a prior contractual relationship, provided that the provider has lawfully obtained the contact details of the recipient and uses them to send commercial communications regarding products or services of its own company that are similar to those initially contracted with the client.

In any case, the provider must offer the recipient the possibility to oppose the processing of their data for promotional purposes through a simple and free procedure, both at the time of data collection and in each of the commercial communications sent to them.

When the communications have been sent by email, this means must necessarily consist of the inclusion of an email address or another valid electronic address where this right can be exercised, and the sending of communications that do not include such an address is prohibited.”

VI.

Proposal and Adjustment of the sanction

The aforementioned infringement of Article 21.2 of the LSSI is classified as minor in Article 38.4.d) of said regulation, which qualifies as such, “The sending of commercial communications by email or another equivalent electronic communication means when the requirements established in Article 21 are not met and does not constitute a serious infringement.”

According to what is established in Article 39.1.c) of the LSSI, minor infringements may be sanctioned with a fine of up to €30,000.

For its part, Article 40 of the LSSI establishes the criteria for adjusting the amount of the sanctions, indicated in FD IV, based on the observed evidence and without prejudice to what results from the instruction, it is considered appropriate to adjust the sanction to be imposed, in this case, according to the aggravating factor of intentionality (section a), for sending commercial communications to the complainant without including a mechanism that allows opposition to receiving commercial communications.

According to these criteria, it is deemed appropriate to impose an initial sanction of 5,000 euros (five thousand euros) for the infringement of Article 21.2 of the LSSI, without prejudice to what results from the instruction of the procedure.

Therefore, in light of the above, by the Director of the Spanish Agency for Data Protection,
IT IS AGREED:

FIRST: TO INITIATE SANCTIONING PROCEDURE against the entity BREOGAN AUTOLUX, S.L., with NIF: B15755853 for the violation of:

- Article 21.1 of the LSSI, classified as minor in Article 38.4.d) of said regulation, regarding the sending of commercial communications via SMS without having requested or expressly authorized them.
- Article 21.2 of the LSSI, classified as minor in Article 38.4.d) of said regulation, regarding the absence of a mechanism that allows the user to oppose receiving commercial communications.

SECOND: TO APPOINT R.R.R. as Instructor, and S.S.S. as Secretary, indicating that either of them may be recused, if applicable, in accordance with the provisions of the law.

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established in Articles 23 and 24 of Law 40/2015, of October 1, on the Legal Regime of the Public Sector (LRJSP).

THIRD: TO INCORPORATE into the sanctioning file, for evidentiary purposes, the claim filed by the claimant and its documentation, all of which are part of this administrative file.

FOURTH: THAT for the purposes provided in Article 64.2 b) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the sanction that may correspond would be 5,000 euros (five thousand euros) for the infringement of Article 21.1 of the LSSI and 5,000 euros (five thousand euros) for the infringement of Article 21.2 of the LSSI.

Thus, the total sanction that may correspond would be 10,000 euros (ten thousand euros).

FIFTH: NOTIFY: this agreement to initiate the sanctioning file to the entity BREOGAN AUTOLUX, S.L., granting a hearing period of ten working days for it to formulate allegations and present the evidence it deems appropriate.

If no allegations are made regarding this initiation agreement within the stipulated period, it may be considered a proposal for resolution, as established in Article 64.2.f) of Law 39/2015, of October 1, on

the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP). In accordance with the provisions of Article 85 of the LPACAP, in the event that the sanction to be imposed is a fine, it may acknowledge its responsibility within the period granted for formulating allegations to this initiation agreement; this will entail a reduction of 20% of the sanction to be imposed in this procedure, equivalent in this case to 2,000 euros. With the application of this reduction, the sanction would be set at 8,000 euros, resolving the procedure with the imposition of this sanction. Similarly, it may, at any time prior to the resolution of this procedure, make voluntary payment of the proposed sanction, which will imply a reduction of 20% of the amount of this, equivalent in this case to 2,000 euros. With the application of this reduction, the sanction would be set at 8,000 euros, and its payment will imply the termination of the procedure, without prejudice to the imposition of the corresponding measures.

The reduction for the voluntary payment of the sanction is cumulative with the one corresponding to the acknowledgment of responsibility, provided that this acknowledgment of responsibility is made within the period granted to formulate allegations to the opening of the procedure. The voluntary payment of the amount referred to in the previous paragraph may be made at any time prior to the resolution. In this case, if both reductions are applicable, the amount of the sanction would be set at 6,000 euros (six thousand euros).

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In any case, the effectiveness of either of the two mentioned reductions will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction.

If the voluntary payment of any of the amounts indicated above (8,000 or 6,000 euros) is opted for, it must be made effective by depositing it into account No. ES00 0000 0000 0000 0000 0000 opened in the name of the Spanish Agency for Data Protection at CAIXABANK, S.A., indicating in the concept the reference number of the procedure that appears in the heading of this document and the reason for the reduction of the amount to which it is entitled. Furthermore, the proof of payment must be sent to the General Subdirectorate of Inspection to continue with the procedure in accordance with the amount deposited.

The procedure will have a maximum duration of nine months from the date of the initiation agreement. After this period, if no resolution has been issued and notified, it will expire, and consequently, the proceedings will be archived; in accordance with the provisions of Article 43.2 of the LSSI.

In compliance with Articles 14, 41, and 43 of the LPACAP, it is warned that, henceforth, notifications sent to you will be made exclusively electronically, through the Single Enabled Electronic Address (dehu.redsara.es), and that, if you do not access them, your rejection will be noted in the file, considering the procedure completed and proceeding with the process. You are informed that you can identify an email address before this Agency to receive notice of the availability of notifications and that the lack of practice of this notice will not prevent the notification from being considered fully valid.

Finally, it is noted that in accordance with the provisions of Article 112.1 of the LPACAP, no administrative appeal is available against this act.

Mar España Martí
Director of the Spanish Agency for Data Protection.

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SECOND: On December 12, 2024, the respondent has proceeded to pay the sanction in the amount of 6,000.00 euros, making use of the two reductions provided in the previously transcribed Initiation Agreement, which implies the acknowledgment of responsibility regarding the facts referred to in the Initiation Agreement and its legal qualification.

THIRD: The respondent has expressly waived any action or administrative appeal against the sanction.

LEGAL GROUNDS

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Competence

In accordance with the provisions of Article 43.1 of Law 34/2002, of July 11, on Information Society Services and Electronic Commerce (hereinafter LSSI) and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter, LOPDGDD), the Presidency of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure. Furthermore, Article 63.2 of the LOPDGDD states that: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, by this organic law, by the regulatory provisions issued for its development, and, to the extent that they do not contradict them, subsidiarily by the general rules on administrative procedures." Finally, the Fourth Additional Provision "Procedure in relation to the competencies attributed to the Spanish Agency for Data Protection by other laws" establishes that: "The provisions of Title VIII and its development rules shall apply to the procedures that the Spanish Agency for Data Protection must process in the exercise of the competencies attributed to it by other laws."

II

Termination of the Procedure

Article 85 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), under the heading "Termination in Sanctioning Procedures" provides as follows:

- "1. Once a sanctioning procedure has been initiated, if the offender acknowledges their responsibility, the procedure may be resolved with the imposition of the appropriate sanction.
2. When the sanction is solely of a pecuniary nature or when it is possible to impose a pecuniary sanction and another non-pecuniary sanction but the impropriety of the latter has been justified, voluntary payment by the presumed responsible party, at any time prior to the resolution, will imply the termination of the procedure, except with regard to the restoration of the altered situation or the determination of compensation for damages caused by the commission of the infringement.
3. In both cases, when the sanction is solely of a pecuniary nature, the competent authority to resolve the procedure shall apply reductions of at least 20% on the amount of the proposed sanction, which shall be cumulative. The aforementioned reductions must be specified in the notification of initiation of the procedure, and their effectiveness will be conditioned upon the withdrawal or renunciation of any action or administrative appeal against the sanction. The percentage of reduction provided for in this section may be increased by regulation."

In accordance with the above,
the Presidency of the Spanish Agency for Data Protection RESOLVES:

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FIRST: DECLARE the termination of procedure EXP202409491, in accordance with the provisions of Article 85 of the LPACAP.

SECOND: NOTIFY this resolution to BREOGAN AUTOLUX, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative route as provided by Article 114.1.c) of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations, the

interested parties may file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the Fourth Additional Provision of Law 29/1998, of July 13, regulating Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.

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Olga Pérez Sanjuán

The Deputy Director General of Data Inspection, in accordance with Article 48.2 LOPDGDD, due to vacancy in the position of Presidency and Deputy Presidency

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